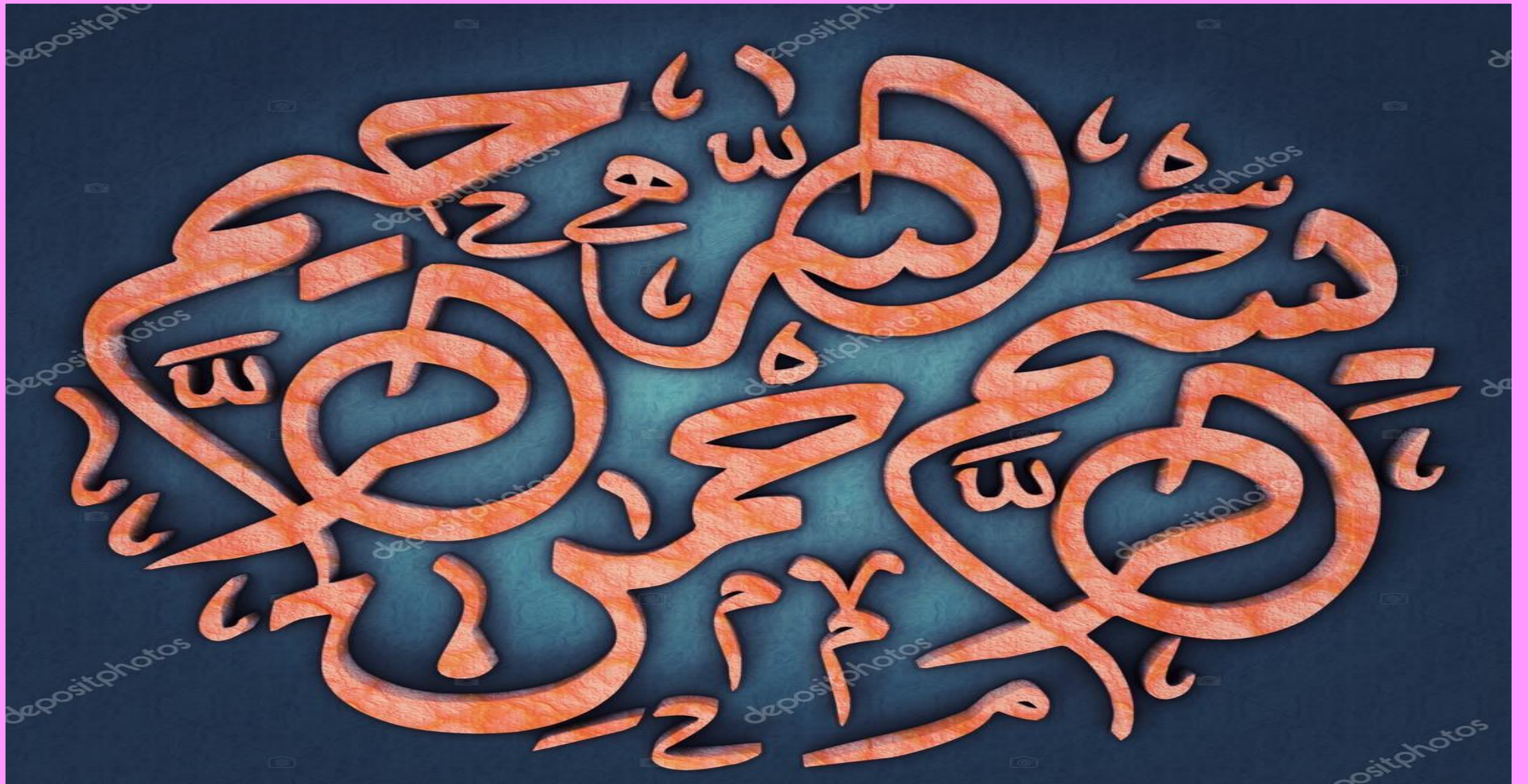






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Islamic & Religious Studies

School of Computing

National University of Computer and Emerging Sciences

Sobia Shehzadi

sobia.shehzadi.v@nu.edu.pk

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Introduction To Islamic Law

The book cover features a rich, colorful illustration. At the top, a wide horizontal band displays a repeating geometric pattern in shades of brown, gold, and green. Below this, a circular medallion with intricate Arabic calligraphy is centered. The background is a composite image: on the left, a portion of a green and gold patterned book cover is visible; in the center, a view of a city with domes and minarets under a blue sky; and on the right, a close-up of a mosque's minaret and dome. A dark blue rectangular box is positioned at the bottom center, containing the text 'And Jurisprudence' in white.

**And
Jurisprudence**

ORIGINS OF ISLAMIC LAW

- All the injections of Islamic law are revelation from Allah and
- The acts and saying of Muhammad as found in the Quran and the Sunnah
- Sharia was not fully developed at the time of Muhammad's death, but rather it evolved around the Muslim community
- It regulates three different factors
 - Relationship between the individual and his Lord
 - Relationship between the individual and himself
 - Relationship between the individual and others

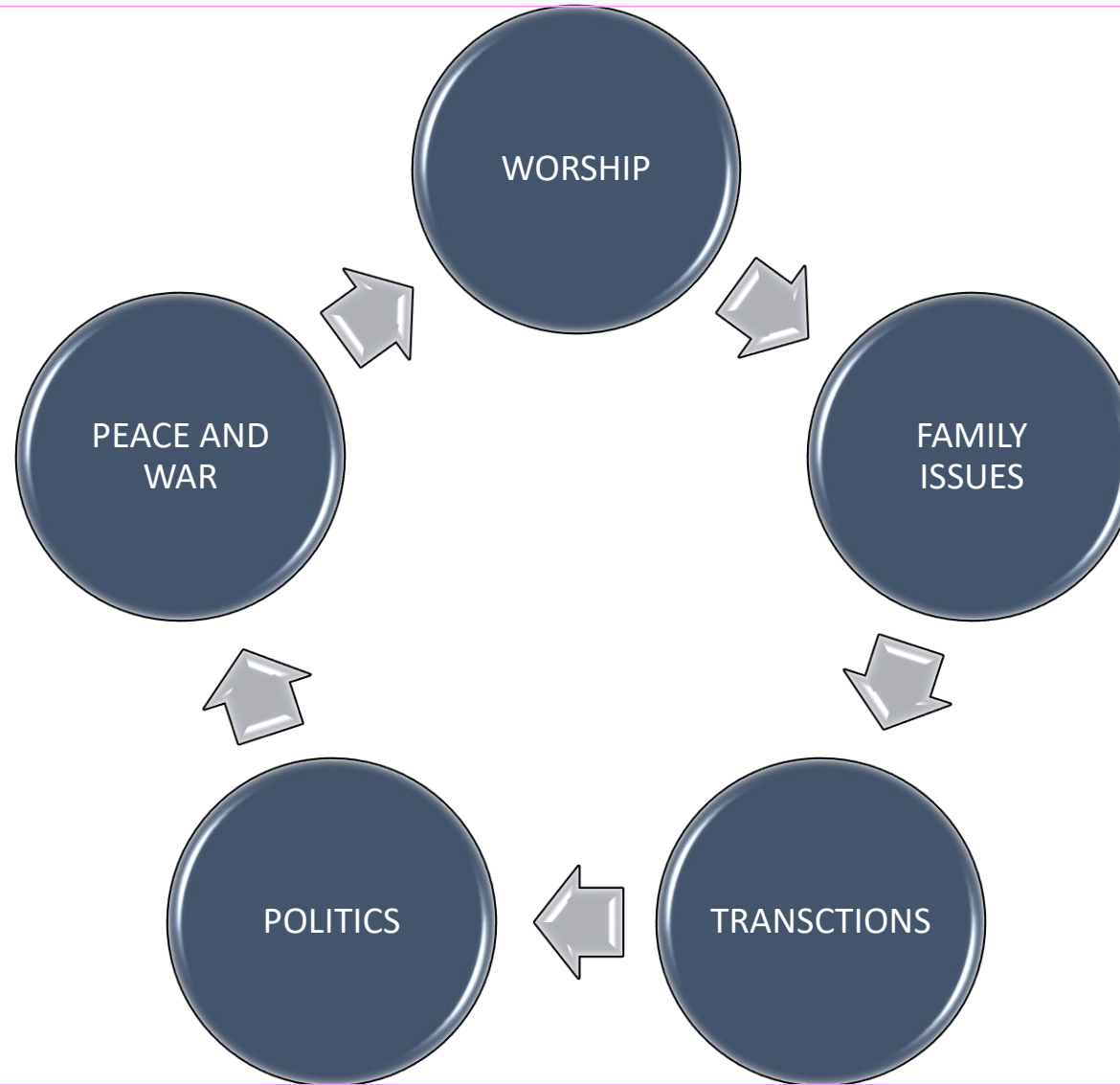
FIQH

- The term fiqh, which literally means understanding or knowledge
- It refers to juristic efforts aiming at coming up with rules that are compliant with sharīa'.
- After the death of the prophet, the early Muslim community was confronted with the issue of regulating life in accordance with Islamic law.
- The human process of development of such a legal system in which rules were extrapolated from the various different authorities and applied to the various hypothetical and real case scenarios is referred to as fiqh.
- Collection of juridical opinions that were given by various jurist from multiple schools of thought,

DEFINITION OF AL-FIQH

- Fiqh, according to the scholars has the following meaning:
- “The collection of rulings or law(taken from) Shariah, dealing with the actions, by which every Muslim is required to live. It is important to know that these rulings deal with the individual as well as the society ”

COMPREHENSIVENESS OF FIQH



Shariah

- Sharia' literally means path, ordain, prescribe, law and straight road
- Commonly used in reference to 'a prophetic religion in its totality, generating such phrases
- As sharī'at Mūsā , sharī'at al-Masīḥ (the law/religion of Moses or the Messiah)
- In the Islamic tradition, sharīā' encompasses the Muslim approach or path to a pious and Islamic compliant life, which includes but is not solely limited to legal matters.

DEFINITION OF SHARIAH

- It refers to the sum total of Islamic Laws which were revealed to the prophet Muhammad which are recorded in the Quran as well as deducible from the Prophet's divinely guided lifestyle (called the Sunnah)

OBJECTIVES OF SHARIAH

Main objectives

- To construct human life on the basis of virtues and to cleanse it to the vices

Objectives of Islamic Law are the protection of

- Faith
- Life
- Intellect
- Posterity
- Property

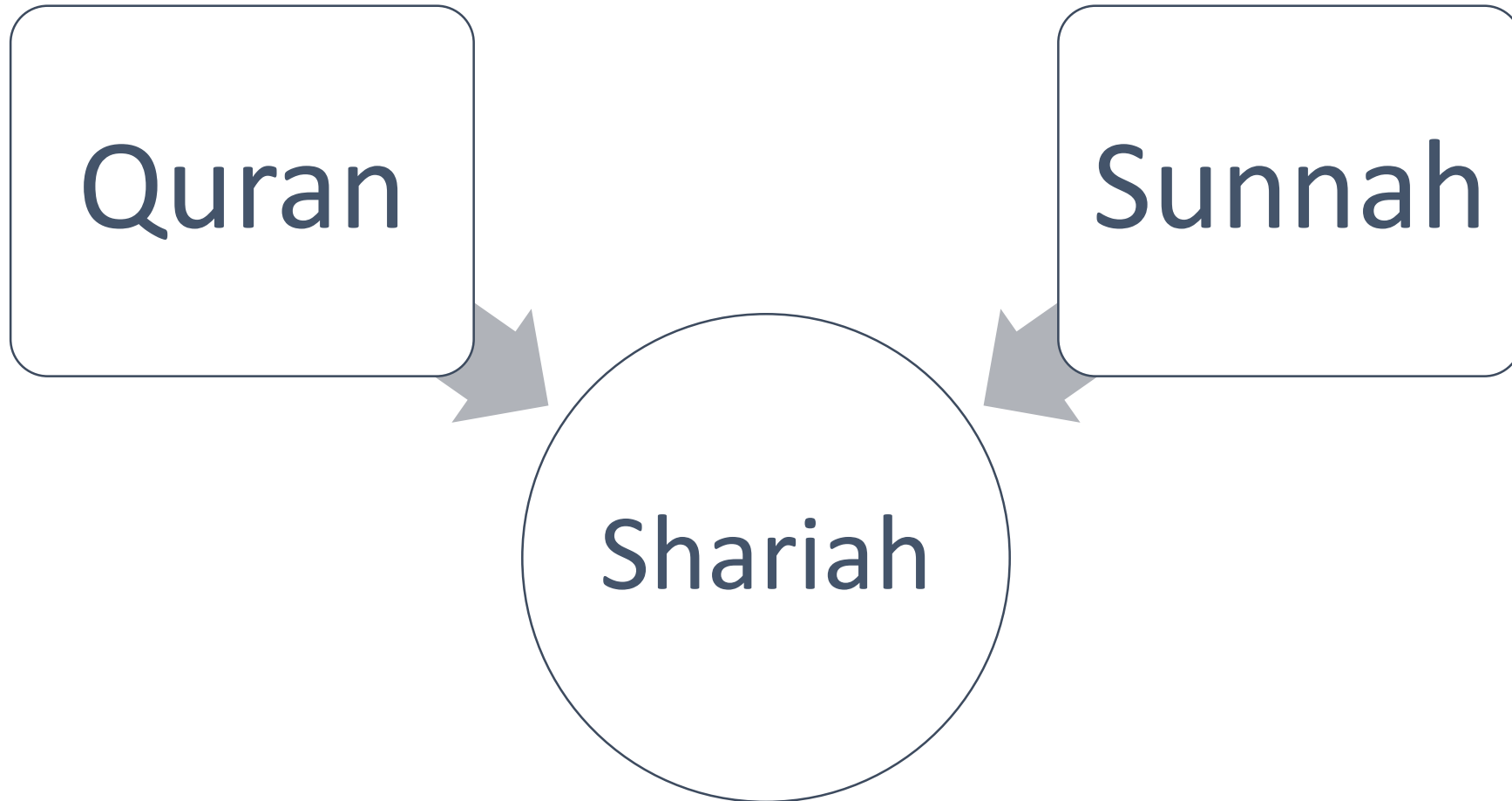
These objectives are of three levels that are:

- Dharuriyat (life and death)
- Hajiyyat (removing hardship)
- Tahsiniyyat (beautifying)

DIFFERENCES

Fiqh	Shariah
Fiqh focuses on narrow and specific issues.	Shariah is broad and general
Fiqh can change based on new information	Shariah cannot be changed
Fiqh comes from the Shariah.	Shariah comes from the Quran and Sunnah
A product of understanding of the sources in Shariah	A path leading to the source of a meaningful life
Humanly acquired	Allah given
Deals with legal rulings and acts	Embrace all human beliefs, activities and actions
Tend to be specific and detail	Most parts are general

SOURCE OF SHARIAH



USUL AL FIQH

- Usūl al-Fiqh (trans. sources of the law), referred to jurisprudential theories addressing the hierarchy of the sources.
- School which represent the maliki, Hanafi and the Hanbali, defined Usul fiqh as follows;
- "The knowledge of principles by means of which one has an access to the derivation of the commands of the shariah relating to the conduct of man on the basis of its detailed proofs..
- العلم بالقواعد التي يتوصل بها إلى استنباط الأحكام الشرعية الفرعية عن أدلتها التفصيلية.

CONT....

- Usul fiqh is methodology of understanding and interpretation the text (revelation Quran & Sunnah).
- Usul fiqh is a discipline base on rules and principles used as methodology to derive the Islamic ruling from the details proof.

BENEFITS OF USUL AL FIQH

- This discipline provides the principles of thinking and reasoning with complete methodology of derivation of law from its sources.
- This discipline is a manual book for the jurist to understand the holy text.
- The discipline helps the jurist to produce law from the sources by applying the rules and principles of Islamic jurisprudence.
- The methodology of this discipline protects the jurists from mistakes, and guides them to exercise ijtiḥad correctly according to the requirement of this discipline.
- This discipline like logic to philosophy and grammar to the language it secure to produce accurate knowledge.
- This discipline maintained the continuity of ijtiḥad throughout the history and will ensure the future continuity of this process till the date of judgment.

SOURCES OF ISLAMIC LAW

Primary sources

- Quran
- Sunnah

Secondary sources

- Ijma
- Qiyas
- Istihsan
- Masalah
- Saad al zarai'
- Urf

QURAN

- The Qur'an was the first source of law and its passages were accepted unanimously as being authentic
- Words of Allah
- Reveled to the Muhammad (P.B.U.H) by the angel Jibrail
- 350 legal ayat in the Qur'an
- 114 chapters
- 6666 verses

AL HADITH

- Ahadith of the Muhammad (peace be upon him) are next in importance after Qur'an
- The Sunnah is considered the second source of revelation based on Allah's statement in the Qur'an.
- "He does not speak from his desires. Verily it is inspiration which has been revealed." (53:3, 4)
- Saying ,deeds and approval of Prophet Muhammad (P.B.U.H)

IJMA(CONSENSUS OF LEGAL OPINION)

Literal
meaning:

- determination, resolution and agreement upon something, uniting in opinion.

Technical
meaning:

- “the agreement of the mujtahids (jurists) from among community of Muhammad (peace be upon him) after his death in a certain period of time upon a rule of Islamic law.”
- It can operate only where Quran and Hadith have not clarified a certain aspect of law
- Consensus of Islamic community on some point of law.

TYPES OF IJMA

Explicit Ijma' (ijma' sarīh):

“one in which the legal opinions of all the mujtahids of one period converge in relation to legal issue, and each one of them states his opinion explicitly.”

Silent or tacit ijma' (ijma' sukuti):

It takes place when some mujtahid, one or more, give a legal opinion with regard to specific rule about a particular legal issue, then the rest of them are informed of this opinion and they keep silent and they neither acknowledge it nor object to it.

QIYAS(ANALOGICAL REASONING)

Literal meaning:

- 1) measurement i.e. measuring something with another e.g. Measuring the cloth with cubic.
- 2) Comparison i.e. comparing something with another.
- 3) Equation

Technical meaning:

- The method of reasoning used was a form of analogical deduction called Qiyas
- “Applying a case whose rule is not found by the text to a case whose rule is found in the text on account of equation of both cases in respect of effective cause of the rule.”
- “Equating a case, whose rule is not mentioned explicitly in the text, with a case whose rule is mentioned, on the basis of the equality between effective causes found in the two cases.”
- An example of Qiyas is the prohibition of marijuana based on the Prophet’s statement: “Every intoxicant is Khamr and every form of Khamr is abominable.” Since Marijuana has as intoxicating effect it can be classified as Khamr and thus abominable (prohibited).

CONSIDERATION OF PUBLIC INTEREST (AL-MASALIH AL MURSALAH/ISTISLAH)

Literal
meaning:

- benefit
- It also means a cause of benefit, for instance, it is said that commerce is a maslahah, meaning that it is the cause of benefit.
- Removing harm is also a maslahah, as benefit is opposite to harm and they cannot combine together.
- So maslahah literally means securing benefit and removing harm.

Technical
meaning:

- Al-Ghazali (505H/1112AD) defines maslahah, “the benefit that intended by The Law Giver for mankind in preservation and protection of their religion, life, reason, lineage and property. Whatever ensures the protection of these five things is beneficial (maslahah), and whatever causes the missing of these five things is harmful (mafsadah) and to remove it, is a maslahah.”

CONSIDERATION OF PUBLIC INTEREST (AL-MASALIH AL MURSALAH/ISTISLAH) AS A SOURCE OF ISLAMIC LAW

- Majority of Muslim jurists consider al-masalih al-mursalah as a source of Islamic law.
- Meanwhile the Zahiri, some Maliki and Shafi'i reject it.

JURISTIC PREFERENCE (ISTIHSAN)

Literal meaning:

- to deem or consider something good.

Technical meaning:

- According al-Imam al-Karkhi, a Hanafi jurists: Istihsan is to depart from the existing precedent, by taking decision in a certain case different from that on which similar case has been decided, for a reason stronger than the one that is obtained in those cases.”
- Ibn al-Arabi, a Maliki jurist, has defined istihsan as to abandon the requirement of the proof as an exception and to make concession when the proofs conflict. He elaborated that the departure in question may be justified by custom, public interest or ijma’. Istihsan is to depart from the existing precedent, by taking decision in a certain case different from that on which similar case has been decided, for a reason stronger than the one that is obtained in those cases.”

BLOCKING THE MEANS (SADD AL-DHARA'I)

Literal Meaning

- sadd means preventing or blocking.
- Dhara'i is the plural of dhari'ah
- signifies the means which leading to certain end either beneficial or harmful.

Terminological Meaning

- means blocking the permissible acts which lead to an evil.

CUSTOM (‘URF)

Literal Meaning

- to know

Terminological
Meaning

- “What is common or customary among the people and to which they have habituated, whether it is a word or deed which is not contrary to the Qur’an and Sunnah”

***Some important
Terms***

IJTIHAD

- The word *ijtihad* derives from the Arabic verbal root *jahada* "struggle," the same root as that of *jihad*;
- ***Ijtihad*** (Arabic اجتهاد) is a technical term of Islamic law that describes the process of making a legal decision by independent interpretation of the legal sources, the Qur'an and the Sunnah.
- A person who applied *ijtihad* was called a *mujtahid*, and traditionally had to be a scholar of Islamic law or alim.
- A mujtahid is a person who is an expert on Islamic jurisprudence.

TAQLID

Literally means

- To follow someone, to imitate.

Terminological
meaning

- To follow a mujtahid in religious law and commandment as he has derived them.
- Some scholars define Taqlid as the acceptance by some Muslims of the opinion of the jurist as binding authority on them and to follow it without question is known as the doctrine of Taqlid
- Qur`an instructs Muslims to seek guidance from people of learning in matters about which they lack knowledge

SCHOOLS OF JURISPRUDENCE/MADHHABS

- Ḥanafī, named after Abu Hanifah (d 767)
- Malikī, named after Malik ibn Anas (d 795)
- Shāfi'ī, named after Muhammad ibn Idris al-Shafi'i (d 819)
- Ḥanbalī, named after Ahmad ibn Hanbal (d 855)
- Ja'fari, named after Imam Ja'far ibn Muhammad al-Sadiq (d 765)

Differences of opinion among scholars could be mercy from God



جَزَاكَ كُمْ اللَّهُ خَيْرًا

